



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36163050

Date: JAN. 22, 2025

Appeal of Nebraska Service Center Decision

Form I-131, Application for Travel Document

The Applicant, a native and citizen of China, seeks a reentry permit. *See* Immigration and Nationality Act (the Act) section 223, 8 U.S.C. § 1203. A reentry permit, obtained prior to departing on temporary travel abroad, allows a lawful permanent resident or conditional resident to apply for admission to the United States upon return, and if that absence lasts more than one year, without the necessity of obtaining a returning resident visa.

The Director of the Nebraska Service Center denied the application, concluding that the record did not establish that the Applicant was physically present in the United States when he applied for the reentry permit. Specifically, the Director determined that the Applicant traveled abroad on July 25, 2023, and did not return to the United States until September 24, 2023; therefore, the Applicant was not physically present in the United States when he filed his Form I-131, Application for Travel Document (Form I-131), on July 28, 2023. The Director cited to the regulation at 8 C.F.R. § 103.2(a)(7)(i). The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

On appeal, the Applicant contends that he personally mailed his Form I-131 from Guam on July 24, 2023,¹ and that he departed Guam on July 26, 2023.² The Applicant therefore claims that July 24, 2023, is the actual filing date of his Form I-131 and, therefore, he requests that his re-entry permit be approved.

The regulation at 8 C.F.R. § 103.2(a)(7) provides, in pertinent part:

¹ A review of the record contains a mailing receipt showing that the Form I-131 application was mailed from Guam on July 24, 2023.

² Although the Applicant claims he departed Guam on July 26, 2023, rather than on July 25, 2023, as the Director stated in the denial, the Applicant has not provided evidence to support his claim.

(i) USCIS will consider a benefit request received and will record the receipt date as of the actual date of receipt at the location designated for filing such benefit request whether electronically or in paper format.

Although we acknowledge the Applicant's assertion that he mailed his Form I-131 on July 24, 2023, he was outside the United States when the application was properly filed on July 28, 2023, when it was received at the designated filing location, and neither the Act nor the regulations provide for an exception to the pre-departure filing requirement in 8 C.F.R. § 223.2(b)(1). Accordingly, the Applicant is ineligible for a reentry permit because he has not shown that he filed his application while in the United States.³

ORDER: The appeal is dismissed.

³ Although he cannot obtain a reentry permit through this application, the Applicant is not precluded from filing a new application when he is physically present in the United States in lawful permanent resident status.